

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Zafar Ahmed

Civil Revision No. 4685 of 2022

Md. Habib Fakir

...petitioner

-Versus-

Abdul Khaleq and others

...opposite parties

Ms. Purabi Saha, Advocate

...for the petitioner

Mr. Md. Nurul Haque, Advocate

... for the opposite parties

Heard and Judgment on: 26.06.2025

This Court issued a Rule and passed an interim order on
17.10.2022 as follows:

“Let a Rule be issued calling upon the opposite party
Nos. 1-26 to show cause as to why the impugned judgment
and order dated 13.09.2022 passed by the learned District
Judge, Patuakhali in Miscellaneous Appeal No. 70 of 2022
admitting the appeal and thereby setting aside the judgment
and order dated 14.12.2021 passed by the learned Senior
Assistant Judge, Patuakhali Sadar, Patuakhali in Title Suit
No. 140 of 2019 allowing the application for temporary
injunction filed under Order 39 Rule 1 and Section 151 of the
Code of Civil Procedure by the petitioner as defendant No. 3

shall not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Pending hearing of the Rule, the parties are directed to maintain status quo in respect of possession and position of the suit land for a period of 06 (six) months from date.”

Present opposite party Nos. 1-26 as plaintiff filed the instant partition suit being Title Suit No. 140 of 2019 in the Court of Senior Assistant Judge, Patuakhali impleading the present petitioner and others as defendants. In the said partition suit, the present petitioner, who is defendant No. 3, filed an application for temporary injunction. The said application was contested by the plaintiffs. The trial Court, vide order dated 14.12.2021 passed an order of temporary injunction directing the parties not to change the nature and character of the suit land and not to interfere with the peaceful possession of the parties till disposal of the suit. The order of injunction was challenged by the plaintiffs by filing Miscellaneous Appeal No. 70 of 2022 along with an application to condone the delay of 238 days in filing the miscellaneous appeal. The learned District Judge, Patuakhali, vide the impugned order No. 1 dated 13.09.2022 admitted the appeal, called for the records, issued notice and passed an order that the application for condonation of delay would be considered at the time of hearing of the appeal. The appellate Court below stayed operation of the order of injunction passed by the trial Court. Challenging the order of the

appellate Court, the defendant No. 3 as petitioner filed the instant revision and obtained the Rule as mentioned earlier.

Heard the learned Advocates of both sides and perused the materials on record.

Since the miscellaneous appeal has not yet been disposed of, in my view, the same should be disposed of by the appellate Court below on merit in accordance with law. Accordingly, the appellate Court below is directed to dispose of the appeal on merit in accordance with law. Till disposal of the appeal, the order of the appellate Court so far as relates to stay operation of the order of injunction order dated 14.12.2021 passed by the trial Court is stayed.

With the above observations and directions, the instant Rule is disposed of. The appellate Court below is directed to dispose of the miscellaneous appeal expeditiously preferably within a period of 03 months from the date of receipt of this order.

Send down the LCR.